

instituted by a party to a suit already pending before it of which it has jurisdiction to try the same question therein involved. *In re Sawyer*, 124 U. S. 200.

The suit in the Circuit Court against the Attorney General was in effect a suit against the State of Minnesota.

The immunity of a State from suit, as provided by the Eleventh Amendment, is not dependent upon any pecuniary interest, as contended by respondents.

Where the decree of the court can operate only upon the State and only to restrain the action of the State, the suit, no matter against whom it is brought, is in effect one against the State and in such case the pecuniary interest the State may or may not have in the result of the litigation is immaterial. *Governor of Georgia v. Madrazo*, 1 Pet. 110; *United States v. Beebe*, 127 U. S. 338; *Savings Bank v. United States*, 19 Wall. 227; *United States v. American Bell Telephone Co.*, 128 U. S. 315; *United States v. American Bell Telephone Co.*, 159 U. S. 548; *United States v. Telephone Co.*, 167 U. S. 224; *Hans v. Louisiana*, 134 U. S. 19. *Reagan Case*, 154 U. S. 362 and *M., K. & T. Ry. Co. v. Hickman*, 183 U. S. 53, discussed and distinguished.

The Circuit Court was without jurisdiction under *Fitts v. McGhee*, 172 U. S. 516, which cannot be distinguished, and to sustain the suit in Minnesota, it must be shown that *Fitts v. McGhee* has been or should be overruled.

The doctrine of that case, however, was in accordance with the previous decisions of this court. *Governor of Georgia v. Madrazo*, 1 Pet. 110; *Board of Liquidation v. McComb*, 92 U. S. 531; *Pennoyer v. McConnaughy*, 140 U. S. 1; *In re Ayers*, 123 U. S. 443.

The doctrine established by these cases has become the settled rule of decision. And see *Cotting v. Godard*, 183 U. S. 79; *Davis & Farnum Mfg. Co. v. Los Angeles*, 189 U. S. 207; *Barney v. State of New York*, 193 U. S. 430; *Gunter v. Atlantic Coast Line R. R. Co.*, 200 U. S. 273; *Farmers' Nat. Bank v. Jones*, 105 Fed. Rep. 459; *Haverhill Gas Light Co. v. Parker*,